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Case Number: 25STCV28998 Hearing Date: July 2, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

GENNADY DOLZHENKO,

Plaintiff,

v.

CITY OF BURBANK, et al.

Defendants.

Case No:

25STCV28998

Hearing Date: July 2, 2026

Calendar Number: 10

Three motions are before the Court. Defendants City of Burbank, Aaron Denning, Neil Gunn, Jesus Espindola, and Adam Baumgarten move for judgment on the pleadings. Plaintiff Gennady Dolzhenko filed "Motion for

Orders: (1) to Cancel Five (5) Unlawful Clerk's Notices of Rejection of Default, (2) to Enter Defaults as of 01/26/26 for Defendants City of Burbank, Denning, Gunn, Espindola and Baumgarten and (3) to Reject the Unlawful 'Sham' Answer Made and Submitted by Defendants' Attorney." Plaintiff also filed a "Motion to Strike Defendants City of Burbank, Denning, Gunn, Espindola and Baumgarten's Sham Answer Fraudulently Submitted on 01/27/26."

Plaintiff's motions are DENIED.

Defendants' motion for judgment on the pleadings is GRANTED IN PART and DENIED IN PART as follows. The motion is GRANTED with leave to amend the following claims: second cause of action (as to Defendants Gunn, Espindola, and Baumgarten only); third cause of action; and fourth cause of action. The motion is otherwise DENIED.

The plaintiff is ordered to file his First Amended Complaint within 30 days of this ruling.

Background

This is a false arrest action. Plaintiff Gennady Dolzhenko ("Plaintiff") alleges that, on October 4, 2023, the Burbank Police Department arrested him on false criminal charges without a warrant, probable cause, or reasonable suspicion of committing a crime.

On October 3, 2025, Plaintiff filed this action against several defendants, including the City of Burbank (the "City"), Aaron Denning ("Denning"), Neil Gunn ("Gunn"), Jesus Espindola ("Espindola"), and Adam Baumgarten ("Baumgarten") (collectively, "Defendants"), asserting the following causes of action:

(1) False arrest/false imprisonment/unlawful search and unlawful seizure;

(2) Violation of Civil Rights (42 U.S.C. 1983) Fourth Amendment (unlawful seizure/search);

(3) Violation of Civil Rights (42 U.S.C. 1983) unconstitutional policy, custom, or procedure (Monell claim);

(4) Violation of Civil Rights (42 U.S.C. 1983)
failure to train, supervise, discipline, or correct; and

(5) Negligent infliction of emotional distress
[“NIED”].

On December 26, 2025, the City filed a “Motion
for Order to Hold Plaintiff in Contempt for Violating Code of Civil Procedure
Section 391.7 and to Require an Order From The Presiding Judge.” The hearing
was set for February 2, 2026.

On January 26, 2026, Plaintiff filed Requests
for Entry of Default against Defendants. Proofs of Service of Summons were also
filed that day, stating that Defendants were personally served by a sheriff on
December 9, 2025.

On January 27, 2026, Defendants filed their
Answer, along with a Notice of Withdrawal of Motion to Hold Plaintiff in
Contempt.

On January 28, 2026, the City filed an “Objection
to Plaintiff’s Request for Entry of Default.”

On January 29, 2026, the clerk filed notices
rejecting Plaintiffs’ Requests for Entry of Default (the “Default Rejections”).

On February 13, 2026, Defendants filed their Motion
for Judgment on the Pleadings (“MJOP”), and Plaintiff filed his “Motion for
Orders: (1) to Cancel Five (5) Unlawful Clerk’s Notices of Rejection of
Default, (2) to Enter Defaults as of 01/26/26 for Defendants City of Burbank,
Denning, Gunn, Espindola and Baumgarten and (3) to Reject the Unlawful ‘Sham’
Answer Made and Submitted by Defendants’ Attorney.”

On February 26, 2026, Plaintiff filed the
instant “Motion to Strike Defendants City of Burbank, Denning, Gunn, Espindola
and Baumgarten’s Sham Answer Fraudulently Submitted on 01/27/26.”

On April 27, 2026, Defendants filed their
oppositions to Plaintiff’s motions.

On May 1, 2026, Plaintiff
filed his opposition to the MJOP.

On May 7, 2026, Plaintiff
filed replies in support of his motions.

On May 14, 2026, the Court
(Hon. Mel Red Recana) held hearings on the motions and issued this tentative
ruling. Pursuant to Plaintiff's oral request, however, the Court did not adopt
this tentative as the final ruling and instead continued the hearings until the
motions could be ruled on by the judge assigned to this case.

After reviewing the
parties' papers, the Court issues the same May 14, 2026 ruling as its current tentative
ruling.

Motion for Cancellation of the Default Rejections

As an initial matter, Plaintiff has filed
evidentiary objections (Nos. 1 and 2) to the declaration of defense counsel,
Rodolpho Aguado. (Objections filed May 7, 2026, pp. 2:8-3:16.) The Court
overrules those objections.

Plaintiff
moves for an order (1) vacating the Default Rejections, (2) entering default
against Defendants, and (3) rejecting Defendants' Answer, pursuant to
California Rules of Court, rule 3.110(g) and Code of Civil Procedure section
585, subdivision (b), arguing that the Default Rejections were "unlawful"
"contain only nonsense," and fail to "contain proper reasons for rejection."
(Motion, p. 7:3-5 [bold emphasis removed]; see also id. at p. 9:6
[citing Civil Code section 3517, which states "No one can take advantage of
their own wrong"].)[1]

In
opposition, Defendants argue the following, among other things. "Plaintiff's
Requests for Entry of Default were defective on numerous grounds, including
because the City had appeared in the matter before Plaintiff filed the Requests
and Plaintiff failed to properly serve and file Statement of Damages before

filing the Requests. Before a plaintiff may take a default against a defendant, they must serve a Statement of Damages on the defendant. Code Civ. Proc., § 425.11(d). Additionally, the party seeking default must wait thirty days after service of the Statement of Damages. *Twine v. Compton Supermarket* (1986) 179 Cal.App.3d 514, 517 [Twine].” (Opposition, p. 4:7-13.) Defendants argue that “[a]s set forth in the City’s Objection to Plaintiff’s Request for Entry of Default, filed in this matter on January 28, 2026, Plaintiff failed to properly serve a Statement of Damages to the City. [Citation.] Plaintiff also failed to properly serve Statement of Damages to the other Opposing [individual] Defendants.” (Id. at p. 4:14-17; see also Objection to Plaintiff’s Request for Entry of Default, p. 4:1-4 [“Plaintiff, himself, attempted to personally serve the City with a Statement of Damages on January 20, 2025 [sic]. [Citation.] Such service was not proper and Plaintiff’s representation that Zina Dolzhenko, a nonparty, served the documents is perjury”].)

In support of his reply, Plaintiff has submitted a supplemental declaration disputing Defendants’ contention that he committed perjury by representing that Zina Dolzhenko served the Statement of Damages. (See Reply, Declaration of [Plaintiff] Gennady Dolzhenko, ¶ 4 [“On January 20, 2026, Zina Dolzhenko went downtown Burbank to serve attorney R. Aguado with the Statement of Damages. I accompanied her. Zina Dolzhenko has serious troubles walking. She is unstable on her feet. She walks very slowly with a cane. We do not have anyone who could serve legal papers on the opposing party. Burbank City Attorney’s Office is located inside Burbank City Hall at 275 E. Olive Ave., Burbank, CA 91502. Zina Dolzhenko was unable to get upstairs because of her ill legs. It was around 4:50 p.m., and we did not have time to seek other options for Zina to serve Aguado with the Statement of Damages, and, by this reason, I took the Statement of Damages, and I went to Burbank City Attorney’s Office. Zina Dolzhenko stayed outside. R. Aguado, attorney, personally accepted the Statement of Damages and nodded his head. Aguado never refused to accept the Statement of Damages on January 20, 2026”]; see also Reply, Declaration of Zina Dolzhenko, ¶ 3 [testifying the same as Plaintiff].)

“There is authority to the effect that a plaintiff is entitled to the entry of default on the date he requests it if there is then no responsive pleading by the defendant on file; and that the plaintiff cannot be deprived of his right to the entry of a default merely because the clerk erroneously fails to perform his ministerial duty and does not enter it when requested.” (*Goddard v. Pollock* (1974) 37 Cal.App.3d

137, 142 (Goddard).)

On the other hand, “it is now well established by the case law that where a pleading is belatedly filed, but at a time when a default has not yet been taken, the plaintiff has, in effect, granted the defendant additional time within which to plead and he is not strictly in default.” (Goddard, *supra*, 37 Cal.App.3d at p. 141.) “[I]t is generally recognized that an untimely pleading is not a nullity, and it will serve to preclude the taking of default proceedings unless it is stricken. The proper procedure is for the plaintiff to move to strike the defendant’s untimely pleading and, if the court grants such relief, thereafter proceed to obtain the entry of the defendant’s default.” (Ibid. [internal quotations omitted].)

Therefore, the question here is whether Plaintiff was entitled to entry of default against Defendants on the date he filed his Requests for Entry of Default on January 26, 2026. If he was, then the default should have been entered on that date, and the Answer Defendants filed on January 27, 2026, must be struck. If Plaintiff was not entitled to entry of default on that date, then Defendants’ Answer on January 27, 2026, was timely filed for default purposes, and Plaintiff’s request to strike that Answer must be denied.

The Court finds that Plaintiff was not entitled to entry of default on January 26, 2026, due to his failure to properly serve the Statement of Damages. “In an action for personal injury in superior court, the plaintiff is prohibited from stating the amount of damages. ([Code Civ. Proc.] § 425.10.) Therefore, section 425.11 requires that the defendant be given a statement of the amount of damages sought before entry of default in order to afford a defendant ‘one “last clear chance” to respond to the allegations of the complaint and to avoid the precise consequences ... [of] a judgment for a substantial sum.... [without] any actual notice of ... potential liability....’ [Citations.] In [Plotitsa v. Superior Court (1983) 140 Cal.App.3d 755, 759–761], the court, construing section 425.11, held that the plaintiff must personally serve a defendant, who has not appeared, with the statement of damages and defer entry of default until 30 days from such service so that defendant can file a responsive pleading.” (Twine, *supra*, 179 Cal.App.3d at p. 517.) Therefore, because Defendants had not yet made an appearance in this action at the time Plaintiff sought entry of default, Plaintiff was required to personally serve them with the Statement of Damages “in

the same manner as a summons.” (Code Civ. Proc., § 425.11, subd. (d)(1).) Under Code of Civil Procedure, “[a] summons may be served by any person who is at least 18 years of age and not a party to the action.” (Code Civ. Proc., § 414.10.) Here, Plaintiff has admitted that he (and not Zina Dolzhenko) personally delivered the Statement of Damages on defense counsel. Zina Dolzhenko’s inability to carry out the service does not make the service of the statement proper. Furthermore, Plaintiff’s claim that “[w]e do not have anyone who could serve legal papers on the opposing party,” is disingenuous where Plaintiff was able to employ a sheriff to personally serve Defendants with the Summons. In any event, even if Zina Dolzhenko had served the Statement of Damages on Defendants on January 20, 2026, Plaintiff was required to wait 30 days from the date of that service to request entry of default. (Plotitsa v. Superior Court, supra, 140 Cal.App.3d at pp. 759–761.) Here, Plaintiff only waited six days, until January 26, 2026, to request entry of default. Therefore, even though the clerk provided other reasons for rejecting the Requests for Entry of Default, the rejections were ultimately proper.

Accordingly, Plaintiff’s motion for an order vacating the Default Rejections, entering default against Defendants, and rejecting Defendants’ Answer is DENIED.

Motion for Judgment on the Pleadings

Defendants

move for judgment on the pleadings as to all causes of action in Plaintiff’s Complaint pursuant to

A.

Legal

Standard

“A motion for judgment on the pleadings is properly granted when the ‘complaint does not state facts sufficient to constitute a cause of action against that defendant.’ (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).)” (Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219 (Stevenson).)

A court “accepts as true the factual allegations that the plaintiff makes” (Gerawan Farming,

Inc. v. Lyons (2000) 24 Cal.4th 468, 515), “but [the court] does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed” (Stevenson, supra, 138 Cal.App.4th at pp. 1219-1220).

B.

Meet

and Confer

“Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a).) “The moving party shall file and serve with the motion for judgment on the pleadings a declaration stating either of the following: ¶ (A) The means by which the moving party met and conferred with the party who filed the pleading subject to the motion for judgment on the pleadings, and that the parties did not reach an agreement resolving the claims raised by the motion for judgment on the pleadings. ¶ (B) That the party who filed the pleading subject to the motion for judgment on the pleadings failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith.” (Id. at subd. (a)(3).)

Defendants

have complied with the meet and confer requirement. (See Declaration of Rodolfo Aguado in support of MJOP, filed February 13, 2026, ¶¶ 2, 3 [testifying the sent Plaintiff correspondence identifying issues raised in the demurrer and requested Plaintiff to provide a phone number to meet and confer, but Plaintiff did not respond to counsel's request to meet and confer].)

C.

The

Parties' Requests for Judicial Notice

Defendants seek judicial notice of the following documents in support of their MJOP.

1. “On April 3, 2024, the City received a Claim for Damages regarding Plaintiff’s alleged October 4, 2023 unlawful arrest, as set forth in the concurrently filed Declaration Of Marlene Kim In Support Of Defendants’ Motion for Judgment on the Pleadings (‘Kim Decl.’).

2. On November 4, 2024, the City mailed Plaintiff a notice informing him that his claim for damages was rejected by operation of law on May 18, 2024, as also set forth in the concurrently filed Kim Decl.”

(Defendants’ Request for Judicial Notice
 (“D-RJN”), p. 2:3-8.)

“‘It is axiomatic that a demurrer lies only for defects appearing on the face of the pleadings.’ [Citation.] Consequently, when considering a motion for judgment on the pleadings, ‘[a]ll facts alleged in the complaint are deemed admitted....’ [Citation.] ‘Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.’ [Citation.]” (Sykora v. State Dept. of State Hospitals (2014) 225 Cal.App.4th 1530, 1534.)

However, “[n]o suit for damages may be maintained against a public entity unless a written claim has first been presented to it. ([Gov. Code] § 945.4.)” (Lincoln Unified School Dist. v. Superior Court (2020) 45 Cal.App.5th 1079, 1088.)

“A plaintiff suing the state or a local public entity must allege facts demonstrating either compliance with the [above] claim presentation requirement or an excuse for noncompliance as an essential element of the cause of action.” (Ovando v. County of Los Angeles (2008) 159 Cal.App.4th 42, 65.)

“If a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity’s records do not show compliance. (See Fowler v. Howell (1996) 42 Cal.App.4th 1746, 1752 [50 Cal.Rptr.2d 484]; [citation]).” (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 376 (Gong).)

In accordance with the above law, Defendants

seek judicial notice of the claim that Plaintiff presented to the City on April 3, 2024, and the notice the City mailed to Plaintiff on November 4, 2024, rejecting Plaintiff's claim.

Therefore, Defendants' request for judicial notice is GRANTED subject to the Court's ruling on Plaintiff's evidentiary objections below.

Plaintiff seeks judicial notice of Code of Civil Procedure sections 438, Government Code section 915.4, and an email from the City confirming the electronic submission of his claim. (Plaintiff's Request for Judicial Notice, filed on May 1, 2026, p. 2:3-25.)

Plaintiff's request for judicial notice is also GRANTED. (Evid. Code, § 452, subds. (a), (c).)

D.
Plaintiff's
Evidentiary Objections

The Court rules on Plaintiff's objections to the declaration of Kim (mentioned above), a Senior Administrative Analyst in the City's Risk Management Division.

Plaintiff's Objection Nos. 1, 3, and 5 are OVERRULED.
Plaintiff's contention that the claim he submitted to the City did not contain the words "Via Email" as shown in Kim's copy is irrelevant because the words at issue (i.e., via email) were written where the document states: "This Space for City Use Only." (D-RJN, Exh. 1, p. 2.) Plaintiff has not disputed the contents in the rest of the document.

Objection
Nos. 2 and 4 are SUSTAINED for lack of personal knowledge.

E.
First
and Fifth Causes of Action Under State Law

"Suits for money or damages filed against a public entity are regulated by statutes contained in division 3.6 of the

Government Code, commonly referred to as the Government Claims Act.’ [Citation.]

These statutory provisions ‘define with precision and clarity the respective rights and duties of both the individual claimants and the public entities[.]’ [Citation.] ‘Section 905 requires the presentation of “all claims for money or damages against local public entities,” subject to exceptions not relevant ... [in this case]. Claims for personal injury and property damage must be presented within six months after accrual; all other claims must be presented within a year.’” (Andrews v. Metropolitan Transit System (2022) 74 Cal.App.5th 597, 604 (Andrews).)

Here, the Complaint alleges: “On April 3, 2024, Plaintiff timely filed an administrative tort claim with the City of Burbank.” (Compl., ¶ 4.)

“‘The Government Claims Act ... defines the local public entity’s responsibilities once it receives a written claim for money or damages. The governing board of the local public entity may act on a claim by rejecting it, allowing it, or compromising it. (§ 912.6, subd. (a). Section 912.4 specifies the time for action by the board.’” (Andrews, supra, 74 Cal.App.5th at p. 604.)

“‘Generally, the board must act “within 45 days after the claim has been presented.” (§ 912.4, subd. (a).) If the board fails ... to act within the specified time, the claim is deemed to have been rejected. (§ 912.4, subd. (c).)’ [Citation.]” (Andrews, supra, 74 Cal.App.5th at p. 604 [emphasis added].)

Here, the Complaint alleges that “Defendant City of Burbank never responded to Plaintiff’s City Claim.” (Compl., ¶ 4.) As such, Plaintiff’s claim was deemed rejected by operation of law 45 days after April 3, 2024, the date he presented his claim to the City.

“‘Regardless of whether the public entity acts or chooses not to act on a claim, the Government Claims Act requires written notice to the claimant or the claimant’s representative.’ [Citation.] ‘Written notice shall be given in a precise manner.’ [Citations.] Section 913, subdivision (a) describes the mandatory requirements for delivery of the notice (see § 915.4) and provides language that ‘may’ be used for the text of the notice.” (Andrews, supra, 74 Cal.App.5th at p. 604.)

“Section 913, subdivision (b) sets forth a warning that ‘shall’ be included if a claim is wholly or partially rejected.” (Andrews, supra, 74 Cal.App.5th at p. 604.) “The statute states, ‘If the claim is rejected, in whole or in part, the notice required by subdivision (a) shall include a warning in substantially the following form: [¶] ‘WARNING [¶] Subject to certain exceptions, you have only six (6) months from the date this notice was personally delivered or deposited in the mail to file a court action on this claim. See Government Code Section 945.6. [¶] You may seek the advice of an attorney of your choice in connection with this matter. If you desire to consult an attorney, you should do so immediately.’ (§ 913, subd. (b).)” (Id. at pp. 604-605.)

If a written notice in accordance with Section 913 is not given to the applicant and the time to file a lawsuit has not been extended pursuant to Section 912.4, then the applicant must file their lawsuit “within two years from the accrual of the cause of action.” (Gov. Code § 945.6, subd. (a)(2).)

If a written notice under Section 913 is given, then the applicant must file the lawsuit “not later than six months after the date such notice is personally delivered or deposited in the mail.” (Gov. Code § 945.6, subd. (a)(1).)

Here, the Complaint alleges that Plaintiff did not receive the notice required by Section 913. (See Compl., ¶ 4 [citing Gov. Code § 945, subd. (a)(2), instead of subd. (a)(1)].)

On the other hand, Defendants argue that they mailed Plaintiff the notice required by Section 913 “on November 4, 2024 Kim Decl., Ex. 2; RJN, No. 2; Gov. Code § 945.6(a)(1). Plaintiff filed this suit on October 3, 2025, five months after the deadline to file suit expired. [Citation.] Accordingly, any state law causes of action that Plaintiff may have had against the Moving Defendants, including those alleged in his first and fifth causes of action, are time-barred and must be dismissed.” (MJOP, p. 6:11-18.)

“‘It is axiomatic that a demurrer lies only for defects appearing on the face of the pleadings.’ [Citation.] Consequently, when considering a motion for judgment on the pleadings, ‘[a]ll facts alleged in the

complaint are deemed admitted....' [Citation.] 'Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.' [Citation.]" (Sykora v. State Dept. of State Hospitals (2014) 225 Cal.App.4th 1530, 1534.)

Here, because the Complaint alleges that the City failed to give Plaintiff the notice required by Section 913, Defendants are not allowed to offer extrinsic evidence to contradict that allegation on an MJOP. Granted, as stated above, when "a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity's records do not show compliance.)" (Gong, supra, 226 Cal.App.4th at p. 376.) Here, the Court has taken judicial notice of Exhibit 2 of Kim's declaration. However, "[t]aking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning.' [Citation.] While courts take judicial notice of public records, they do not take notice of the truth of matters stated therein. [Citation.] 'When judicial notice is taken of a document, ... the truthfulness and proper interpretation of the document are disputable.' [Citation]" (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.) In addition, the Court has sustained Plaintiff's personal knowledge objection to Kim's testimony regarding the mailing of the rejection notice. Kim has not testified that she personally mailed the notice or was present when the notice was mailed.

For those reasons, Defendants' request for judgment of the pleadings as to the first and second causes of action in the Complaint is DENIED.

F.

Second

Cause of Action for Violation of Civil Rights (42 U.S.C. 1983) Fourth Amendment (Unlawful Seizure/Search)

"Title 42 United States Code section 1983

provides in relevant part: 'Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State ... subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or

immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress....” (Arce v. Childrens Hospital Los Angeles (2012) 211 Cal.App.4th 1455, 1472 (Arce).)

“To state a claim under § 1983, a plaintiff must allege the violation of a right secured by the Constitution and laws of the United States, and must show that the alleged deprivation was committed by a person acting under color of state law.’ [Citations]” (Arce, supra, 211 Cal.App.4th at p. 1472.)

Plaintiff’s second cause of action alleges that the individual defendants (Denning, Gunn, Espindola, and Baumgarten) engaged in the unlawful search and seizure of Plaintiff in violation of the Fourth Amendment of the United States Constitution.

“The Fourth Amendment protects individuals against “unreasonable searches and seizures.”” (Susag v. City of Lake Forest (2002) 94 Cal.App.4th 1401, 1414; see also Riley v. California (2014) 573 U.S. 373, 381–382 (Riley) “[T]he ultimate touchstone of the Fourth Amendment is ‘ “reasonableness.”’ [Citation]”).)

“Where a search is undertaken by law enforcement officials to discover evidence of criminal wrongdoing, ... reasonableness generally requires the obtaining of a judicial warrant.’ [Citation.] Such a warrant ensures that the inferences to support a search are “drawn by a neutral and detached magistrate instead of being judged by the officer engaged in the often competitive enterprise of ferreting out crime.” [Citation.] In the absence of a warrant, a search is reasonable only if it falls within a specific exception to the warrant requirement.” (Riley, supra, 573 U.S. at p. 382.)

“A “seizure” triggering the Fourth Amendment’s protections occurs only when government actors have, “by means of physical force or show of authority, ... in some way restrained the liberty of a citizen [...]” [Citations.]’ [Citation.] “[T]he “reasonableness” inquiry in an excessive force case is an objective one: the question is whether the officers’ actions are “objectively reasonable” in light of the facts and circumstances confronting them, without regard to their underlying intent or motivation.’ [Citation.]” (Susag v. City of Lake Forest (2002) 94 Cal.App.4th 1401,

Defendants argue that the second cause of action fails to state a claim because it fails to allege specific, unconstitutional conduct by each of those individuals. (MJOP, p. 7:12-17 ["In order to adequately plead a § 1983 claim for false arrest, 'a § 1983 plaintiff must [allege] that the investigator made deliberately false statements or recklessly disregarded the truth... and that the falsifications were material to the finding of probable cause.' *Galbraith v. County of Santa Clara* (9th Cir. 2002) 307 F.3d 1119, 1126 (holding that multiple factually specific allegations that a coroner recklessly and intentionally falsified an autopsy report were sufficient to plead a claim under § 1983) (internal quotation omitted)"]; *id.* at p. 8: ["Plaintiff alleges, in a conclusory fashion, that Denning arrested Plaintiff on false criminal charges"]; p. 9:16-21 ["Plaintiff does not make any specific factual allegations about whether Gunn made any false statements or recklessly disregarded the truth in order to establish probable cause for Plaintiff's arrest, or that Gunn conducted any search of Plaintiff at any time"]; p. 10:2-5 ["[T]here are no factual allegations that Espindola made any false statements, recklessly disregarded the truth, conducted any search of Plaintiff, or was even present on October 4, 2023, when Plaintiff was arrested"]; p. 10:8-10 ["[T]here are no factual allegations that Baumgarten made any false statements, recklessly disregarded the truth, conducted any search of Plaintiff, or was present when Plaintiff was arrested"].)

"Because vicarious liability is inapplicable to ... § 1983 suits, see, e.g., *Monell v. New York City Dept. of Social Servs.*, 436 U.S. 658, 691, 98 S.Ct. 2018, 56 L.Ed.2d 611 [*Monell*], the plaintiff in a suit ... must plead that each Government-official defendant, through his own individual actions, has violated the Constitution." (*Ashcroft v. Iqbal* (2009) 556 U.S. 662, 663.)

However, to the extent Defendants are arguing that a heightened pleading standard is required for Section 1983 claims, that argument has been rejected by the United States Supreme Court and the Ninth Circuit Court of Appeals. (See *Morgan v. U.S.* (9th Cir. 2003) 323 F.3d 776, 780 ["Heightened pleading standards no longer apply to constitutional claims involving improper motives. The traditional Rule 12(b)(6) standards govern ..."]; see also *Empress LLC v. City and County of San Francisco* (9th Cir. 2005) 419 F.3d 1052, 1055-1056 [discussing the United States Supreme Court and Ninth Circuit cases [including the case Defendants cite in their MJOP *Galbraith v.*

County of Santa Clara (9th Cir. 2002) 307 F.3d 1119 (Galbraith)]
that have rejected the application of a heightened pleading standard in Section
1983 actions].)

In addition, although the Ninth Circuit in Galbraith
stated “a § 1983 plaintiff must show that the investigator ‘made deliberately
false statements or recklessly disregarded the truth in the affidavit’ and that
the falsifications were ‘material’ to the finding of probable cause” (Galbraith,
supra, 307 F.3d at p. 1126), the federal court made that statement with
regard to affidavits submitted in support of a warrant.

Here, the Complaint alleges that Plaintiff was
“falsely arrested without a warrant” (Compl., ¶ 20.)

Defendants have not cited any law requiring a
plaintiff making that allegation to plead facts showing that a government
official “made deliberately false statements or recklessly disregarded the
truth in the affidavit” and “that the falsifications were material to the
finding of probable cause.”

The question remains what the proper procedure
is for evaluating a Section 1983 claim on demurrer or MJOP.

In Arce, the California Court of Appeal
answered that question as follows. For section 1983 claims, California courts ““apply
federal law to determine whether [the] complaint [has pleaded] a cause of
action ... sufficient to survive a general demurrer.” [Citations.] According to
federal law, “we are required to construe complaints under [section 1983]
liberally.” [Citation.] “To uphold a dismissal [for failure to state a claim
for relief, the federal counterpart of our general demurrer], it must appear to
a certainty that the plaintiff would not be entitled to relief under any set of
facts that could be proved.” [Citation.]’ [Citation.] Therefore, dismissal is
proper only where ‘it appears beyond doubt that the plaintiff can prove no set
of facts in support of the claims that would entitle him to relief.’
[Citation.]” (Arce supra, 211 Cal.App.4th at p. 1475; see also id. at p.
1471 [noting that Jensen v. City of Oxnard (9th Cir.1998) 145 F.3d 1078,
1082 stated dismissal of section 1983 claim under 12(b)(6) motion (Fed. Rules
Civ.Proc., former rule 12(b)(6)) is only appropriate if “it appears beyond
doubt that [the plaintiff] can prove no set of facts in support of [the] claims
that would entitle [him to relief]”].)

Here, the Court finds that Plaintiff has alleged facts sufficient to constitute a cause of action for unreasonable seizure against Denning. The Complaint alleges that Denning arrested Plaintiff for criminal threat based on a vague accusation that Plaintiff wanted someone out of a park. (Compl., ¶¶ 20, 21, 22.) Plaintiff alleges that reason was unreasonable and that the arrest was carried out without a warrant, without probable cause, and without reasonable suspicion of a crime. (Compl., ¶ 20.) Those facts are sufficient for an unreasonable seizure under the Fourth Amendment. Whether the seizure is ultimately found reasonable is a question of fact. Indeed, “reasonableness [of a Fourth Amendment search and seizure] is a fact-specific question that involves weighing the character and scope of the search against any expectation of privacy.” (Richards v. County of Los Angeles (C.D. Cal. 2011) 775 F.Supp.2d 1176, 1182.) “Generally, ‘[q]uestions of fact may be resolved [at the pleadings stage] only when there is only one legitimate inference to be drawn from the allegations of the complaint.’ [Citations.]” (Arce, supra, 211 Cal.App.4th at p. 1475.) Here, the allegations in the Complaint do not allow one legitimate inference; they could support Plaintiff’s view that the arrest was unreasonable, but could also support Defendants’ view that they had probable cause.

Accordingly, Denning’s MJOP of the second cause of action is DENIED.

However, the Complaint fails to allege the individual actions that Gunn, Espindola, and Baumgarten took that violated the Fourth Amendment’s prohibition against unreasonable search and/or seizure. (Ashcroft, supra, 556 U.S. at p. 663.) Plaintiff’s arguments in the opposition do not convince the Court otherwise.

Therefore, Gunn, Espindola, and Baumgarten’s MJOP of the second cause of action against is GRANTED with leave to amend.

G.

Third

Cause of Action for Violation of Civil Rights (42 U.S.C. 1983) Unconstitutional Policy, Custom, or Procedure (Monell claim)

“Under [Monell], a local government may

not be held liable for its employees' violations of section 1983 unless 'the constitutional violation was caused by its official policy, practice, or custom.' [Citation.]" (Arce, supra, 211 Cal.App.4th at p. 1483.)

"Such actions are commonly referred to as policy or custom section 1983 cases against local governmental entities and local officials acting in their official capacity." (Julian v. Mission Community Hospital (2017) 11 Cal.App.5th 360, 384 (Julian) [citations and internal quotations omitted].)

Defendants argue that even if "[i]f Plaintiff's allegations against the individual defendants are deemed adequate [as the Court has found here with regard to Denning], then Plaintiff still fails to allege sufficient facts to support a Monell claim against the city. Plaintiff alleges that the City had 'de facto' policies of failing to adequately investigate complaints against officers, failing to discipline its officers, and retaining personnel who falsely detain persons. Complaint at ¶ 57. Other than generalized allegations that the policies were made by "decision makers", Plaintiff does not identify any person with policy-making authority that developed the alleged practices, and fails to explain how those policies were the moving force behind the alleged constitutional violations he suffered. Id. at ¶ 59. Notably, the only complaint that Plaintiff alleges was not investigated was his jailhouse complaint to Baumgarten, and Plaintiff does not allege that any of the individual Moving Defendants had engaged in prior similar conduct that was not adequately investigated or disciplined. Id. at ¶ 23. Accordingly, the third cause of action alleges insufficient facts to support a Monell claim against the City." (MJOP, p. 12:8-20.)

The Court notes that Plaintiff did not address Defendants' "person with policymaking authority" argument in his opposition.

"[A] municipality can be liable under § 1983 only where its policies are the 'moving force [behind] the constitutional violation.'" (City of Canton, Ohio v. Harris (1989) 489 U.S. 378, 389 [a case cited by Plaintiff's opposition].)

In addition, "[g]overnment entities are liable under section 1983 only where their 'regulations, policies, customs, or usages by persons having "final policymaking authority"' violate another's constitutional rights. [Citations.]" (Julian, supra, 11

Cal.App.5th at pp. 386–387.)

Here, the Complaint fails to allege the policies that were the moving force behind the alleged constitutional violations. The Court also agrees with Defendants that Plaintiff has failed to allege facts specifying the person with final policymaking authority who made the alleged policies of failing to adequately investigate complaints against officers, failing to discipline its officers, and retaining personnel who falsely detain persons.

Therefore, Defendants' MJOP of the third cause of action (Monell claim) is GRANTED with leave to amend.

H.

Fourth

Cause of Action for Violation of Civil Rights (42 U.S.C. 1983) Failure to Train, Supervise, Discipline, or Correct

Lastly, Defendants move for judgment on the pleadings of the fourth cause of action, arguing that it fails to state a claim because "Plaintiff does not allege that there was any pattern of misconduct that would have put the City on notice that the training of its officers was deficient or would have otherwise demonstrated deliberate indifference by the City. Plaintiff vaguely alleges that the City's Chief of Police should have known of officer misconduct similar to what he has alleged because of arrest reports and claims for damages, but Plaintiff stops short of alleging that there is a pattern of similar misconduct, and there is no explanation how arrest reports and claims for damages would apprise the Chief, or the City, of a deficiency in officer training." (MJOP, p. 13:10-16.)

In his opposition, Plaintiff argues, among other things that: "The involvement of multiple high-ranking officers (including 2 sergeants, a detective, and a watch commander) resulting in a false arrest for a 'NON-CRIME' and classifying a NON-CRIME as a FELONY demonstrates that the need for training was 'patently obvious,' potentially establishing municipal liability under 42 U.S.C. § 1983 without proof of a pre-existing pattern of violations. Plaintiff was arrested for the allegation in which no one word had criminal meaning. Moreover, Plaintiff never told this, and there is not evidence that he told this (see ¶ 33 of Plaintiff's Verified Complaint)." (Opposition, p. 14:7-14.)

However, Plaintiff was required to plead facts “indicating what, in the training [supervision, discipline, or correction of the alleged officers], was the deficiency that ultimately lead to the alleged constitutional deprivation” (Cardenas v. County of Tehama (E.D. Cal. 2020) 476 F.Supp.3d 1055, 1067; see also *ibid.* [“The conclusory statement that these Defendants inadequately trained their subordinates is insufficient under the pleading standards and cannot support the necessary causal connection between the supervisor’s alleged wrongful action and the constitutional violation”].)

In addition, even if it is “obvious” that a city is required to train its employees, the United States Supreme Court in *City of Canton, Ohio v. Harris* specified that “the failure to provide proper training may fairly be said to represent a policy for which the city is responsible, and for which the city may be held liable if it actually causes injury.” (*City of Canton, Ohio v. Harris*, *supra*, 489 U.S. at p. 390 [emphasis added].)

As stated above in connection with the Court’s discussion of the Monell claim, the Complaint fails to allege the policies that were the moving force behind the alleged constitutional violations. Consequently, Plaintiff has also failed to allege the causal connection between those policies and the injuries he is alleging in this case.

Therefore, Defendants’ MJOP of the fourth cause of action is GRANTED with leave to amend.

I.

MJOP

Conclusion

The Motion for Judgment on the Pleadings of Plaintiff’s Complaint is GRANTED IN PART and DENIED IN PART as follows.

The motion is GRANTED with leave to amend the following claims: the second cause of action as to Defendants Gunn, Espindola, and Baumgarten only; the third cause of action; and the fourth cause of action.

The motion is DENIED as to the first and fifth causes of action, and as to Defendant Denning’s request for judgment on the pleadings of the second cause of action.

Plaintiff

is ordered to file his First Amended Complaint within 30 days of this ruling.

Motion to Strike Answer

In light of the Court's ruling above, granting in part the MJOP with leave to amend, Plaintiff's request to strike the defenses in Defendants' Answer is DENIED as moot.

[1] California Rules of Court, rule 3.110(g) states:

"If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed. The court may issue an order to show cause why sanctions should not be imposed if the plaintiff fails to timely file the request for the entry of default." Code of Civil Procedure section 585, subdivision (b), states: "In other actions, if the defendant has been served, other than by publication, and no answer, demurrer, notice of motion to strike of the character specified in subdivision (f), notice of motion to transfer pursuant to Section 396b, notice of motion to dismiss pursuant to Article 2 (commencing with Section 583.210) of Chapter 1.5 of Title 8, notice of motion to quash service of summons or to stay or dismiss the action pursuant to Section 418.10 or notice of the filing of a petition for writ of mandate as provided in Section 418.10 has been filed with the clerk of the court within the time specified in the summons, or within further time as may be allowed, the clerk, upon written application of the plaintiff, shall enter the default of the defendant."